

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tileyah Williams	Team: Squad #06	CCRB Case #: 202200964	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 01/31/2022 9:50 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/31/2023	Precinct: 67		
Date/Time CV Reported Thu, 02/10/2022 11:07 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/15/2022 11:31 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. PO Fei Lin	08330	963612	067 PCT
3. PO Forhad Mahamud	08337	963625	067 PCT
4. SGT Philip Ditto	03147	932557	067 PCT
5. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Cassidy Tibbets	00987	951334	067 PCT
2. PO Jose Salazar	16890	966827	067 PCT
3. PO Ihor Zaverukha	15866	961471	067 PCT
4. PO Luis Lopez	27415	930590	071 PCT
5. PO Pasquale Dinunno	19028	950329	067 PCT
6. PO Sean Barry	11329	968263	067 PCT
7. PO Denisa Skovranova	04574	969371	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Fei Lin	Abuse: Police Officer Fei Lin threatened to arrest § 87(2)(b)	A . Substantiated
B . PO Fei Lin	Discourtesy: Police Officer Fei Lin spoke discourteously to § 87(2)(b)	B . Substantiated
C . An officer	Force: An officer used a chokehold against § 87(2)(b)	C . Officer(s) Unidentified
D . PO Forhad Mahamud	Force: Police Officer Forhad Mahamud used physical force against § 87(2)(b)	D . Unsubstantiated
E . PO Fei Lin	Force: Police Officer Fei Lin used physical force against § 87(2)(b)	E . Unsubstantiated
F . PO Fei Lin	Discourtesy: Police Officer Fei Lin acted discourteously toward § 87(2)(b)	F . Substantiated
G . Officers	Force: Officers used physical force against § 87(2)(b)	G . Unfounded
H . SGT Philip Ditto	Abuse: Sergeant Philip Ditto forcibly removed § 87(2)(b) to the hospital.	H . Substantiated
I . PO Forhad Mahamud	Discourtesy: Police Officer Forhad Mahamud spoke discourteously to § 87(2)(b)	I . Substantiated

Case Summary

On February 10, 2022, § 87(2)(b) filed this complaint over the phone with IAB generating the log number § 87(2)(b).

On January 31, 2022, at approximately 9:50pm, § 87(2)(b) was disallowed from his building by security guards at § 87(2)(b) in Brooklyn. He called 911 and initially, Police Officer Fei Lin and Police Officer Forhad Mahamud of the 67th Precinct responded. PO Lin threatened to arrest § 87(2)(b) for criminal trespassing and said “Fuck it” while placing him in handcuffs (**Allegation A: Abuse of Authority: substantiated**) and (**Allegation B: Discourtesy, substantiated**). PO Mahamud, PO Lin and additional officers allegedly put § 87(2)(b) in a chokehold, threw him to the ground (**Allegations C: Force: Officer Unidentified, Allegations D and E: Force: Unsubstantiated**). PO Lin did not allow § 87(2)(b) to sit on his wheelchair after he repeatedly asked to do so (**Allegation F: Discourtesy, substantiated**). § 87(2)(b) was allegedly dragged to the front door (**Allegation G: Force: Unfounded**).

Sergeant Philip Ditto and additional officers of the 67th Precinct arrived at the location. Sgt. Ditto decided to remove § 87(2)(b) to the hospital (**Allegation H: Abuse of Authority, substantiated**). While § 87(2)(b) was in the ambulance complaining about his handcuffs, PO Mahamud told him, “That’s it, enough alright. I don’t want to hear your bullshit anymore” (**Allegation I: Discourtesy, substantiated**).

§ 87(2)(b) was not arrested or summonsed during this incident.

The investigation obtained body-worn camera (BWC) videos from all officers who responded (**01, 02, 03, 04, 05 Board Review**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Fei Lin threatened to arrest § 87(2)(b)

Allegation (B) Discourtesy: Police Officer Fei Lin spoke discourteously to § 87(2)(b)

Allegation (C) Force: Officers used a chokehold against § 87(2)(b)

Allegation (D) Force: Police Officer Forhad Mahamud used physical force against

§ 87(2)(b)

Allegation (E) Force: Police Officer Fei Lin used physical force against § 87(2)(b)

At the time of the incident, § 87(2)(b) lived at § 87(2)(b) § 87(2)(b) in Brooklyn. The Human Resources Administration provides housing in this building for members of the public who need it. When entering the building, there is a metal detector and security guards positioned at the entrance in the lobby. Further into the lobby, is a hallway that leads to the elevators.

When PO Lin and PO Mahamud’s BWC recordings begin, they are already inside of the lobby and talking to the security guards (**02, 03 Board Review**). When the audio begins in

PO Lin's recording, at one minute, PO Lin says to § 87(2)(b) that the security guards have orders that § 87(2)(b) cannot enter the building. At 2:12 minutes PO Lin tells § 87(2)(b) that he needs to go because he is trespassing, and § 87(2)(b) says that he is not leaving. § 87(2)(b) is sitting in his wheelchair. § 87(2)(b) speaks loudly and does so throughout the incident. At 2:38 minutes, PO Lin asks a security guard if they want § 87(2)(b) to leave and one of them says, "Yes." At 2:48 minutes, PO Lin says that if § 87(2)(b) did not leave that they would arrest him for trespassing. At 5:00 minutes, § 87(2)(b) says that he is bipolar and schizophrenic. PO Lin asks if he is taking medication and § 87(2)(b) says that everything is upstairs. At 7:40 minutes, § 87(2)(b) explained that he took his medication that morning. At 10:27 minutes, PO Lin goes over the radio and makes an inaudible statement. At 11:38 minutes, PO Lin is on his mobile phone, and it sounds like he says that he is going to have, "One under" (an arrest). At 14:37 minutes, § 87(2)(b) stands up from his wheelchair and tells either PO Mahamud or a security guard, "I'm going to fucking drop you and hurt you real fucking bad" and "I'm going to fuck you up." At 15:21 minutes, the angle shows a view of the memo with a NYC letterhead on the top left corner and there is a handwritten note that says, "No entry." **(07 Board Review)**. The words are typed and cannot be clearly seen. At 16:28 minutes, PO Lin tells § 87(2)(b) that if he did not leave, he would be arrested for criminal trespassing **(02 Board Review)**. § 87(2)(b) said that he was not walking out. At 17:00 minutes, PO Lin said that he was giving § 87(2)(b) a direct order to leave. At 17:21 minutes, PO Lin has his handcuffs in his hands and walks toward § 87(2)(b) says, "Don't put your hands on me." § 87(2)(b) is still standing. PO Lin touches § 87(2)(b) left arm and PO Mahamud stands behind § 87(2)(b). At 17:23 minutes, § 87(2)(b) moves his left arm away from PO Lin and repeats, "Don't put your hands on me." PO Lin steps fully in front of § 87(2)(b) and tries to get his right arm. § 87(2)(b) moves his arm away from PO Lin. PO Lin asks him three times if he was going to leave. The camera is covered and does not show what is happening at that moment. § 87(2)(b) responds all three times, "Why are you putting your hands on me?" At 17:43 minutes, § 87(2)(b) says that he is going to walk out but that he is going to press charges. PO Lin then backs away from § 87(2)(b). At 17:45 minutes, PO Lin says, "You know what fuck it," and walks toward § 87(2)(b). At this point, § 87(2)(b) repeats that he is leaving. The camera view is obstructed. At 18:06 minutes, PO Lin asks, "what are you reaching for?" At 18:31 minutes, when the camera view becomes clear, § 87(2)(b) is sitting on the floor with his legs stretched out in front of him. Neither PO Lin's nor PO Mahamud's BWC recording shows how § 87(2)(b) got to the floor. At 18:47 minutes, the angle shows that PO Mahamud is touching § 87(2)(b) other hand and § 87(2)(b) says that he is twisting it and hurting him (this is unclear and is not shown on either officers' recording). At 19:25 minutes, PO Lin places one cuff on § 87(2)(b) left wrist and holds him by it. At 20:33 minutes, additional units respond.

The BWC recording of Detective Cassidy Tibbets, of the 67th Precinct, shows that starting at 9 minutes, while he talks to the security guards at the location, he states that they are illegally evicting § 87(2)(b) and that the only person that can get § 87(2)(b) out is a landlord-tenant court judge with US Marshals **(04 Board Review)**. At 10:28 minutes, Det.

Tibbets says that § 87(2)(b) was in handcuffs for no reason. At 11:28 minutes, a security guard, ostensibly the manager, tells Det. Tibbets that he cannot argue with him because he is right.

§ 87(2)(b) testified that on January 31, 2022, at 9:50pm, he entered the lobby of his building in his wheelchair when one of the security guards continuously told § 87(2)(b) that he did not live in the building **(06 Board Review)**. § 87(2)(b) pressed the button on his life alert necklace for assistance, which called out to all emergency services including NYPD, FDNY and an ambulance service. § 87(2)(b) explained during his call to emergency services that he was being told that he did not live in the building by security despite being a resident. Shortly thereafter, PO Lin, PO Mahamud and two additional officers arrived. The officers spoke to the security guard and asked if § 87(2)(b) lived in the apartment building. The security guards showed the officers a document and stated that § 87(2)(b) did not live in the building. § 87(2)(b) spoke to the security manager and the manager told officers that § 87(2)(b) did live in the building. § 87(2)(b) explained to PO Lin and PO Mahamud that he lived in the building, had keys to an apartment and an emotional support dog in his apartment. The officers instructed § 87(2)(b) to leave the building. One of the officers told § 87(2)(b) “I’m going to ask you one time, either you leave the building or we’re going to use force on you.” § 87(2)(b) refused to leave. The officers approached § 87(2)(b) and attempted to place him in handcuffs, but he did not allow them to do so by keeping his arms away from the officers. Ultimately, one of the officers, put § 87(2)(b) in a chokehold, “threw” him to the ground and handcuffed him. § 87(2)(b) did not complain of any injuries. Officers told § 87(2)(b) that he was being taken to the hospital because he was suicidal, though he denied making any threatening statements against himself or others.

Though § 87(2)(b) did not allege a threat of arrest or discourtesy allegation, as they were captured on BWC, Allegations A and B are being pled **(02, 03, 04 Board Review)**.

PO Mahamud testified that when he was assigned to the location, he knew that it was a shelter because he responded to the location in the past **(08 Board Review)**. When he and PO Lin arrived, they learned from two security guards that § 87(2)(b) had been evicted from the building and that they wanted § 87(2)(b) to leave. The security guards provided a document, which PO Mahamud believed was signed by the court, noting that § 87(2)(b) was not allowed to be in the building. He did not recall whether he looked at the document himself. PO Mahamud believed that the document was permissible to disallow § 87(2)(b) from the building. § 87(2)(b) then became aggressive and told the officers that they should not touch or put their hands on him and that he would hit them back, though they had not tried to touch him. PO Mahamud and PO Lin then decided to arrest § 87(2)(b) for trespassing because the security guards wanted him out of the building, and he refused to leave. PO Mahamud and PO Lin began putting § 87(2)(b) in handcuffs and § 87(2)(b) stood up, held his bent arms outward toward the sides of his body and held them still so that the officers would not handcuff him. § 87(2)(b) then lowered his body down and sat on the floor. Neither PO Mahamud nor PO Lin did anything to get § 87(2)(b) to the floor.

PO Mahamud and PO Lin pulled § 87(2)(b) arms behind his body and handcuffed him using two sets of handcuffs. PO Mahamud did not tell § 87(2)(b) to leave or that he would use force against him, and he did not hear PO Lin say this. Neither PO Mahamud nor PO Lin put § 87(2)(b) in a chokehold and threw him to the ground.

PO Lin's testimony was consistent with PO Mahamud's with the following exceptions (**09 Board Review**). After PO Lin looked at the document presented by the security guards, he knew that the document was not court ordered but believed because it was on an official memo from the building management, it was valid and that the security guards had to honor it. Based on the document, he told § 87(2)(b) that he would arrest him. PO Lin decided to place § 87(2)(b) in handcuffs because he was becoming increasingly aggressive with his yelling and at some point, he started bumping his wheelchair into the security guards. PO Lin wanted to keep § 87(2)(b) and himself safe from further aggression. He noted that at that point, he did not know whether § 87(2)(b) would be removed to the hospital or arrested for disorderly conduct of yelling and harassment against the security guards. When he initiated the handcuffing, PO Lin said, "You know what, fuck it" because he had been dealing with § 87(2)(b) for some time and there was no change in § 87(2)(b) behavior. PO Lin clarified that he did not use the word, "fuck" against § 87(2)(b) but made the statement to himself. He also testified that neither he nor PO Mahamud did anything to get § 87(2)(b) to the floor and that § 87(2)(b) body went limp and he sat down himself. The only contact that they made with § 87(2)(b) at that point was trying to put handcuffs on him. When PO Lin attempted to guide one of § 87(2)(b) wrists behind his back, § 87(2)(b) pushed his arms toward the officers, waved them up and down and held them still at the side of his body so that officers could not get them behind his back. PO Lin and PO Mahamud decided to put each of their handcuffs on § 87(2)(b) wrists. This is when § 87(2)(b) body went limp. PO Lin denied saying that he would use force against § 87(2)(b) and putting him in a headlock.

The 911 communications for NYPD Event § 87(2)(b) generated for this incident, records § 87(2)(b) making a call to 911 and reporting that he needed police because he was being harassed and that he was not being allowed into his apartment (**10 Board Review**). He noted that he had squatter's rights. The radio communications for this event recorded the central dispatcher telling PO Lin and PO Mahamud to arrive at the location for harassment. At 1:14:19 minutes of the recording, PO Lin requested additional units and § 87(2)(b) was in the background yelling something inaudible. Several units, including Sgt. Ditto noted that they were going to arrive to help.

The investigation made several attempts to obtain a copy of the memo statements and video footage from staff at the incident location, however, they were unresponsive.

Government-owned housing is exempt from the unlawful eviction statute, which prohibits evictions for individuals occupying a dwelling unit pursuant to a lease; individuals lawfully occupying a dwelling unit for thirty or more consecutive days; or when they occupy a dwelling unit within a hotel that is subject to registration under the rent stabilization law (**22 Board Review**). A person is guilty of criminal trespass in the second degree when he or she knowingly enters or remains unlawfully in a dwelling New York Penal Law 140.15

(11 Board Review). Uniformed members of service should be cognizant that incidents to which they respond may be the outgrowth of a civil process. The authority to break and enter pursuant to purely civil process such as repossessions, evictions and civil commitments is given to the city Marshal/sheriff Patrol Guide Procedure 214-13 (12 Board Review). The only assistance which the police must render to a Marshal is the general mandate of the New York City Charter to preserve the peace and protect life and property. If the subject of an eviction refuses to leave voluntarily, member of service should request a supervisor to respond.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as *substantiated*.

Language which would ordinarily be inappropriate in dealing with civilians may be excused in the course of violent confrontation Disciplinary Case 2017-17276 (13 Board Review). Police officers must value human life, respect the dignity of each individual and render services with courtesy and civility Patrol Guide Procedure 200-02 (14 Board Review).

As mentioned earlier, PO Lin's BWC captured him saying, "Fuck it," prior to placing § 87(2)(b) in handcuffs. § 87(2)(g)

It is therefore recommended that **Allegation B** be closed as *substantiated*.

§ 87(2)(b) testified that officers put him in a chokehold, but PO Lin and PO Mahamud denied doing this. At the point when this allegation would have occurred, only PO Lin and PO Mahamud were at the location and the BWC does not show officers' actions. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as *officer unidentified*.

§ 87(2)(b) said that officers threw him to the ground, but PO Lin and PO Mahamud, the

only officers present at the time, denied doing this. Both officers said that § 87(2)(b) sat on the floor on his own. The BWC footage shows that § 87(2)(b) goes to the floor while officers place him in handcuffs. However, the BWC does not show how § 87(2)(b) gets to the floor, whether he fell on his own nor whether officers used this as a tactical way to place him in handcuffs. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegations D and E** be closed as *unsubstantiated*.

Allegation (F) Discourtesy: Police Officer Fei Lin acted discourteously toward § 87(2)(b).

PO Lin's BWC shows that at 21 minutes, PO Lin, PO Mahamud and PO Barry help § 87(2)(b) stand up from the floor (**02 Board Review**). PO Lin and PO Barry fully place § 87(2)(b) in handcuffs. At 23:08 minutes, § 87(2)(b) asks to sit in his wheelchair and says that his legs were hurting him. PO Mahamud's BWC shows that at 24:09 minutes, when § 87(2)(b) asks to sit in his chair, PO Lin and Barry are holding either side of § 87(2)(b) while Police Officer Ihor Zaverukha of the 67th Precinct searches him (**03 Board Review**). No one responds to him. § 87(2)(b) says that he is going to fall. The time stamp on the recording is 10:16pm. PO Lin's BWC recording shows that he has § 87(2)(b) standing while officers decide what will happen next (**02 Board Review**). At 28:06 minutes, Sgt. Ditto makes the decision to remove § 87(2)(b) to the hospital. At 34:30 minutes, § 87(2)(b) cries that his legs and body are in pain. He says that his back hurts and that he can't feel his legs. A view of § 87(2)(b) wheelchair showed that there was a bag in the seat of the chair. PO Lin and additional officers walk § 87(2)(b) to his wheelchair and allow him to sit at 35 minutes (10:27pm). § 87(2)(b) sat with the bag in the seat of the chair.

§ 87(2)(b) did not plead this allegation and it is being pleaded based on BWC footage (**02, 03 Board Review**).

PO Lin said that he did not recall why they did not allow § 87(2)(b) to sit in his wheelchair (**09 Board Review**).

Initially, PO Mahamud testified that they immediately sat § 87(2)(b) in his wheelchair (**08 Board Review**). After reviewing PO Lin's BWC footage, he said that he did not recall why § 87(2)(b) was not immediately placed in his wheelchair and believed that it was because officers needed to remove items from his wheelchair.

Police officers must value human life, respect the dignity of each individual and render services with courtesy and civility Patrol Guide Procedure 200-02 (**14 Board Review**). If an arrestee has a mobility disability and has an assistive device, officers may remove the arrestee to search them, but once thorough searches of the arrestee and assistive device are completed, the assistive device should be returned to the arrestee as long as it is safe to do

so Patrol Guide Procedure 208-05 (15 Board Review).

The BWC shows that § 87(2)(b) asked to sit in his wheelchair for at least 11 minutes and officers refused to let him do so. § 87(2)(g)

11 minutes had elapsed and when § 87(2)(b) sat in his chair, his belongings were still in it.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as *substantiated*.

Allegation (G) Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) testified that after he was handcuffed, officers dragged him from inside the lobby/near the hallway, to where the metal detectors are at the entrance of the building (**06 Board Review**).

PO Mahamud's BWC recording shows that the first time that officers escorted § 87(2)(b) to the metal detectors at 25:38 minutes, PO Lin and PO Barry walked him slowly (**03 Board Review**). § 87(2)(b) was escorted back to his wheelchair. At 53:00 minutes, after EMTs arrive, they transfer § 87(2)(b) from his wheelchair to one of their escorting chairs. § 87(2)(b) is then wheeled to the metal detectors and out of the building.

PO Mahamud denied dragging § 87(2)(b) to the metal detectors, and he did not see any other officer do this (**08 Board Review**). PO Lin also denied dragging § 87(2)(b) to the metal detectors (**09 Board Review**).

§ 87(2)(b) testified that officers dragged him to the metal detectors. The BWC contradicts § 87(2)(b) testimony and shows § 87(2)(b) first being walked slowly by PO Lin and PO Barry and then being wheeled to the metal detectors. PO Lin and PO Mahamud also denied dragging § 87(2)(b).

§ 87(2)(g)

it is recommended that **Allegation G** be closed as *unfounded*.

Allegation (H) Abuse of Authority: Sergeant Philip Ditto forcibly removed § 87(2)(b) to the hospital.

PO Lin's BWC recording shows that at 26:30 minutes (10:18pm), Det. Tibbets has just arrived and asks what happened (**02 Board Review**). § 87(2)(b) is a few feet away from the building door, loudly explaining to Det. Tibbets that he is being kicked out of the building. The building door is being held open. The building door closes at 27:35 minutes. At 27:58 minutes, Det. Tibbets tells § 87(2)(b) that he is going to talk to the security guards and § 87(2)(b) stops talking. At 28:03 minutes, Sgt. Ditto walks into the building. Sgt. Ditto's BWC recording shows that at the beginning there is no audio (**05 Board Review**). Sgt. Ditto arrives at the location at 48 seconds of his recording (10:19pm), and two officers who are outside of the building, say something to him. Sgt. Ditto then

proceeds to the building. Prior to getting into the building, he says aloud, “EDP.” He repeats, “EDP, call a bus,” to officers as soon as he walks into the building. Sgt. Ditto leaves the location at 10:25pm. PO Lin’s BWC recording from 44:12 minutes (10:36pm) shows that PO Lin meets EMTs, § 87(2)(b) and § 87(2)(b) outside the location, and tells them that § 87(2)(b) is giving officers and security guards a hard time and that he was arguing (**02 Board Review**). PO Lin explains that guards have an order not to let § 87(2)(b) in and that § 87(2)(b) was not listening. When the EMTs enter the building, § 87(2)(b) explains to the EMTs that someone told the security guards to leave him alone. He says that he is not suicidal, does not take medication and has an emotional dog in his apartment. EMT § 87(2)(b) continuously asks § 87(2)(b) whether he takes medication, and he says that he does not and just wants to go home. EMT § 87(2)(b) asks if § 87(2)(b) can walk and § 87(2)(b) says that he is going home. At 47:07minutes, EMT § 87(2)(b) tells § 87(2)(b) that officers told him that he was not allowed to go upstairs, and § 87(2)(b) says that someone said he could go upstairs. EMT § 87(2)(b) reiterates that officers told him that he was not allowed to go upstairs, and § 87(2)(b) repeats that he lives there. At 47:56 minutes, PO Lin is looking at the screen of his mobile phone and at 48 minutes, PO Lin tells the EMT § 87(2)(b) that § 87(2)(b) has an EDP history, in the past, § 87(2)(b) has ADHD. EMT § 87(2)(b) asks PO Lin whether they were going to, “EDP him” and PO Lin says yes. PO Lin asks EMT § 87(2)(b) “you’re good to go?” and EMT § 87(2)(b) says, “Yeah, if you’re going to EDP him.” PO Lin then tells § 87(2)(b) that he is being removed to the hospital.

§ 87(2)(b) testified that he was removed to the hospital against his will (**05 Board Review**). § 87(2)(b) did not provide the investigation with signed HIPAA forms.

EMT § 87(2)(b) testified that officers made the decision to have § 87(2)(b) removed to the hospital (**23 Board Review**). In PO Lin’s BWC video, he heard himself tell PO Lin that if officers were going to, “EDP” § 87(2)(b) that he would take § 87(2)(b) to the hospital. EMT § 87(2)(b) was not informed that § 87(2)(b) was allowed to enter the building but said that this would not have had any bearing on the decision to remove him. From observing § 87(2)(b) behavior in the BWC video, EMT § 87(2)(b) said that § 87(2)(b) was yelling and moving aggressively, which would have led him to believe that § 87(2)(b) needed to be removed to the hospital.

EMT § 87(2)(b) was not interviewed because the BWC shows that discussion about removing § 87(2)(b) to the hospital was between PO Lin and EMT § 87(2)(b).

Sgt. Ditto testified that when he heard the location over the radio, he decided to respond because he knew that there were some tenants in the building with psychological disorders (**16 Board Review**). Sgt. Ditto said that he was never informed about what was going on at the location, prior to arriving in the building. Sgt. Ditto heard § 87(2)(b) yelling from outside the building but could not recall what he was saying. Sgt. Ditto determined then, when he heard the yelling, that § 87(2)(b) was emotionally disturbed. When Sgt. Ditto arrived in the building, he saw that officers had § 87(2)(b) in handcuffs. Sgt. Ditto assumed that § 87(2)(b) was being arrested for criminal trespassing when he saw him in handcuffs. Sgt. Ditto did not want § 87(2)(b) to be arrested for a crime because he did not commit a major crime. As soon as he walked into the building, Sgt. Ditto told the officers that § 87(2)(b) was an “EDP.” He thought it would be a better idea for § 87(2)(b) to talk

to someone or get assistance. Sgt. Ditto walked to the security guards and saw that Det. Tibbets was speaking to them. Initially, Sgt. Ditto said that he understood from Det. Tibbets and the security guards' conversation, that § 87(2)(b) did not live at the location anymore and was placed somewhere else. After reviewing his BWC during the interview, Sgt. Ditto said that he did not hear Det. Tibbets say that § 87(2)(b) was being illegally evicted to the security guards because he was focused on the radio and did not hear the full story.

PO Mahamud said that at some point during the incident, that § 87(2)(b) said that he suffered from bipolar disorder (**07 Board Review**). PO Mahamud believed that he made the decision to take him to the hospital because of his behavior, and because he said that he was bipolar. Beside threatening to hit the officers, PO Mahamud did not recall § 87(2)(b) making any other threats. PO Mahamud said that he was unable to answer whether § 87(2)(b) was dangerous to himself and others but that he made threats against the officers and was aggressive.

PO Lin testified that other than § 87(2)(b) yelling, bumping into security guards (not shown on BWC) with his wheelchair, and having bipolar disorder, ADHD and schizophrenia, he was not aware of any other reasons that § 87(2)(b) needed to be removed to the hospital (**08 Board Review**).

Aided report § 87(2)(b) completed by PO Lin, notes that § 87(2)(b) was actively acting disorderly, combative and would not cooperate (**17 Board Review**). He noted that § 87(2)(b) said that he had bipolar disorder and schizophrenia. PO Lin also noted that § 87(2)(b) physically and verbally threatened others.

An emotionally disturbed person is § 87(2)(b) who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. Patrol Guide Procedure 221-13 (**18 Board Review**). Officers should take the individual into custody and remove them to the hospital.

When Sgt. Ditto arrived at the location, § 87(2)(b) was handcuffed and being arrested for trespassing. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation H** be closed as *substantiated*.

Allegation (I) Discourtesy: Police Officer Forhad Mahamud spoke discourteously to

This allegation is being pleaded based on BWC footage.

PO Mahamud's BWC recording shows that at 59:20 minutes, § 87(2)(b) is sitting in the ambulance and complains about the handcuffs hurting his wrists (**03 Board Review**). § 87(2)(b) repeatedly yells, "Take the fucking cuffs off." PO Mahamud points his finger toward § 87(2)(b) and says, "Enough alright. I don't want to hear your bullshit anymore."

PO Mahamud testified that he told § 87(2)(b) that he did not want to hear his bullshit (**08 Board Review**). He noted that § 87(2)(b) also asked the officers whether they thought that he was going to hit them, and he was trying to tell § 87(2)(b) that he did not want to hear him making threats against them. He did not have any reason to use the word bullshit.

Language which would ordinarily be inappropriate in dealing with civilians may be excused in the course of violent confrontation Disciplinary Case 2017-17276 (13 Board Review). Police officers must value human life, respect the dignity of each individual and render services with courtesy and civility Patrol Guide Procedure 200-02 (14 Board Review).

§ 87(2)(g)

§ 87(2)(g)
recommends that **Allegation I** be closed as *substantiated*.

Civilian and Officer CCRB Histories

- [illegible]

§ 87(2)(b)

- PO Lin has been a member of service for five years and this is the first CCRB complaint to which he has been a subject.
- PO Mahamud has been a member of service for five years and this is the first CCRB complaint to which he has been subject.
- Sgt. Ditto has been a member of service for 19 years and has been subject in 15 other CCRB complaints and 36 other allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 15, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**20 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 6

Investigator: Tileyah Williams SI Tileyah Williams 01/ 18/2023
Signature Print Title & Name Date

Squad Leader: Jessica Peña IM Jessica Peña 1/18/2023
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date